

General Knowledge

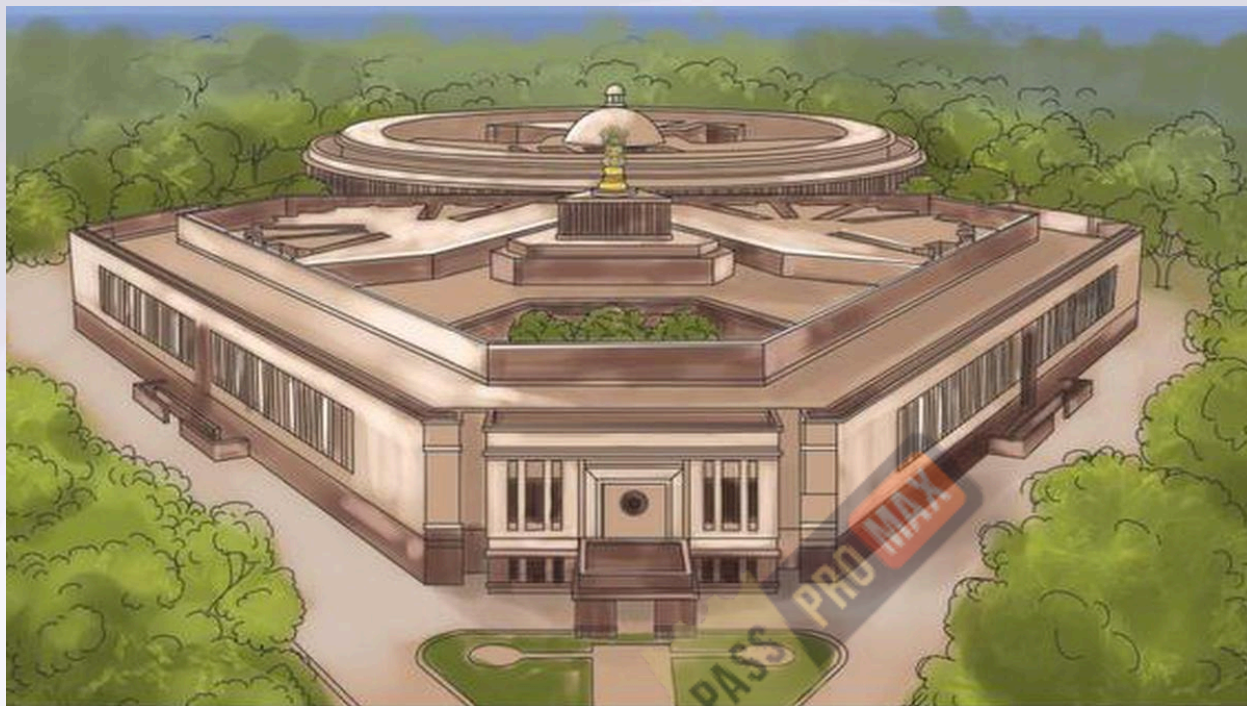
Indian Polity

STUDY NOTES

Devices of Parliamentary Proceedings



DEVICES OF PARLIAMENTARY PROCEEDINGS



Introduction:

- **Devices of parliamentary proceedings** are essential tools that help in maintaining **order** and **efficiency** during the sessions of Parliament.
- These devices include mechanisms like **Question Hour**, **Zero Hour**, **Motions**, and **Adjournment** to enable members to raise important matters and ensure **accountability** of the government.
- The procedures have evolved over time, forming the foundation of **democratic functioning** in India.
- The Indian parliamentary system, while borrowing some elements from the **British system**, has developed unique mechanisms, such as **Zero Hour** and **Calling Attention Motion**.

Detailed Explanation of Devices of Parliamentary Proceedings

1. Question Hour:

- The first hour of every parliamentary session where MPs ask questions to ministers.
- **Types of Questions:**
 - **Starred Questions:** Require an **oral answer**; allows follow-up questions.

- **Unstarred Questions:** Require a **written answer**; no follow-up allowed.
- **Short Notice Questions:** Asked with less than **10 days' notice**; answered orally.
- **Purpose:** To scrutinize the work of the government, seek **information**, and raise **pressing issues**.

2. Zero Hour:

- A time slot immediately after **Question Hour**, not mentioned in the official parliamentary rules, where MPs can raise **urgent matters** without prior notice.
- **Purpose:** To allow members to raise **issues of public importance** spontaneously.
- **Special Note:** **Zero Hour** is an Indian innovation that has been in existence since **1962**.

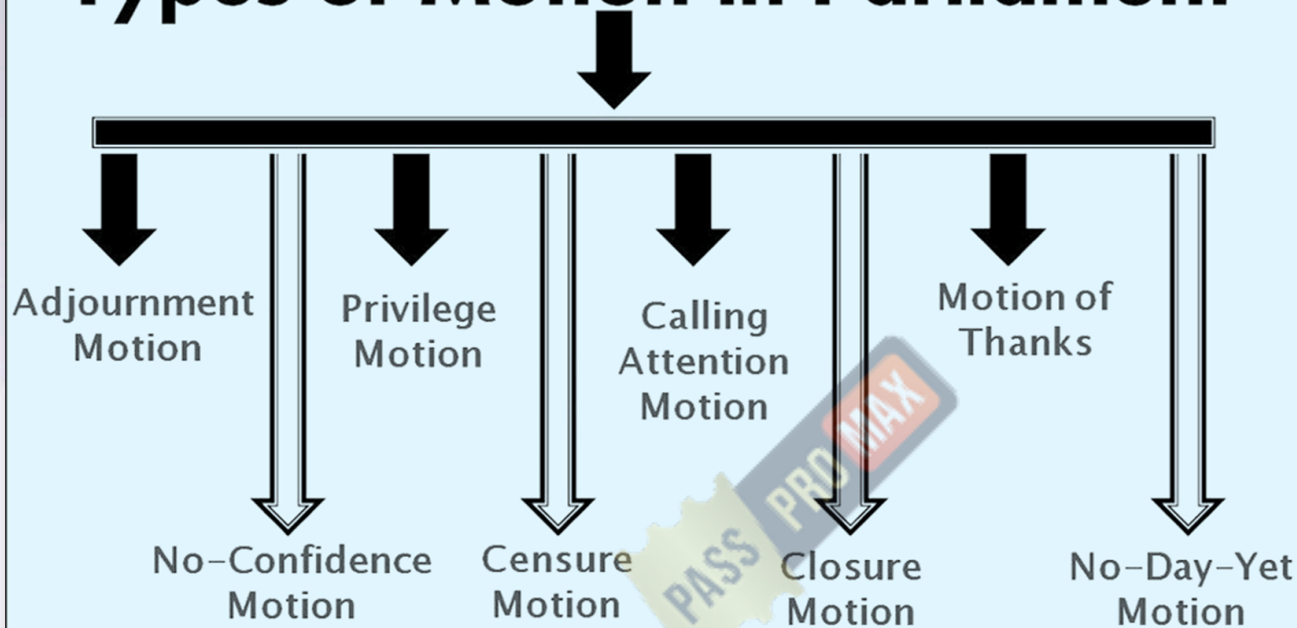
3. Adjournment Motion:

- An extraordinary device used to draw attention to **urgent matters of public importance** and censure the government.
- **Conditions for Admission:**
 - It must raise a **definite, factual, and urgent** public matter.
 - It requires the support of at least **50 MPs**.
- **Purpose:** Often used as a tool for **opposition parties** to halt regular business and force a debate on pressing issues.

4. Motions:

- **Substantive Motion:** Deals with a significant matter like the **impeachment** of a high officeholder.
- **Substitute Motion:** Moved in place of the **original motion**, offering an alternative solution.
- **Subsidiary Motion:** Supplementary to an existing motion; includes **Ancillary**, **Superseding**, and **Amendment** motions.
 - **Ancillary Motion:** Helps in carrying forward other **parliamentary business**.
 - **Superseding Motion:** Raised to **supersede** another issue being discussed.
 - **Amendment Motion:** Proposes changes to part of the **original motion**.

Types of Motion in Parliament



5. Closure Motion:

- A tool used to cut short **discussions** and put the matter to **vote**.
- **Types of Closure:**
 - **Simple Closure:** Ends discussion and moves to **vote**.
 - **Closure by Compartments:** Divides a bill into sections for **debate and vote**.
 - **Kangaroo Closure:** Only important sections are debated; others are skipped.
 - **Guillotine Closure:** Remaining undiscussed clauses are put to vote due to **time constraints**.

6. Privilege Motion:

- Initiated when a member believes a minister has violated the **privileges of Parliament** or its members by withholding information or giving **false facts**.
- **Purpose:** To **censure** the minister in question.

7. Calling Attention Motion:

- Used to call a minister's attention to an **urgent matter of public importance**.

- **Purpose:** To receive an **authoritative statement** from the concerned minister.
- **Special Note:** This device was introduced in **1954** and is explicitly mentioned in the **parliamentary rules**.

8. No-Confidence Motion:

- A motion moved by MPs to express a **lack of confidence** in the Council of Ministers.
- **Constitutional Provision:** **Article 75** states that the Council of Ministers is collectively responsible to the **Lok Sabha**.
- **Admission:** Requires the support of at least **50 members** of the Lok Sabha.
- **Purpose:** If passed, it leads to the **resignation** of the entire Council of Ministers.

9. Censure Motion:

- Can be directed at a specific minister or the entire government for **specific actions or policies**.
- **Purpose:** It is used to express **strong disapproval**, and if passed, the concerned minister may be forced to **resign**.

Aspect	Censure Motion	No-Confidence Motion
Purpose	Censures the government or specific ministers for their actions or policies	Aimed at determining if the government still enjoys the confidence of the majority in the Lok Sabha
Reasons Required	Yes, it must state specific reasons for the motion	No, it does not require specific reasons for its adoption
Target	Can be directed at an individual minister, a group of ministers, or the entire government	Directed only at the entire Council of Ministers.
Effect if Passed	If passed, it does not necessarily result in the resignation of the government	If passed, the entire Council of Ministers must resign

10. Motion of Thanks:

- Moved after the **President's address** at the start of each new parliamentary session.

- **Purpose:** To thank the President for outlining the government's **plans** and to debate those policies.
- **Significance:** If the Motion of Thanks is not passed, it reflects a **lack of support** for the government.

11. No-Day-Yet-Named Motion:

- A motion admitted by the **Speaker**, but not scheduled for discussion.
- **Purpose:** It allows flexibility in scheduling **important issues** for debate.

12. Point of Order:

- Raised when the rules of **procedure** are not being followed during parliamentary proceedings.
- **Purpose:** To ensure that the debate or proceedings adhere to the **parliamentary rules**.
- **Special Note:** It temporarily **halts** the current proceedings and does not allow debate.

13. Half-an-Hour Discussion:

- Designed for discussing a matter of **public importance** that has already been debated but needs further **clarification**.
- **Duration:** Limited to **half an hour**.
- **Purpose:** Allows members to seek detailed clarification on a matter of **fact**.

14. Special Mention:

- Used in the **Rajya Sabha** for matters that cannot be raised under any other rule. Its equivalent in the Lok Sabha is **Notice Under Rule 377**.
- **Purpose:** To allow members to bring forward **important issues** that don't fit into other procedural categories.

15. Resolutions:

- **Private Member's Resolution:** Moved by a non-minister, discussed on **alternate Fridays**.
- **Government Resolution:** Moved by a **minister**, discussed any day Monday through Thursday.
- **Statutory Resolution:** Moved under provisions of the **Constitution** or an **Act of Parliament**.
- **Purpose:** To draw attention to important issues and call for a **formal vote**.

Points to Remember:

1. **Question Hour** allows members to scrutinize the government's work through **oral** and **written** questions.
2. **Zero Hour** is an informal Indian innovation, allowing MPs to raise **urgent issues** without notice.
3. **Adjournment Motion** interrupts the regular business of the House to discuss **urgent public matters**.
4. **No-Confidence Motion** leads to the resignation of the **Council of Ministers** if passed.
5. **Privilege Motion** is used to **censure ministers** for breaching parliamentary privileges.

